

Priya Prem v. Uttar Pradesh Power Corporation Ltd. & 4 Others

Allahabad High Court · Division Bench · 24 April 2025 · 2025:AHC:62434-DB · WRIT - C No. 11384 of 2025 · **Writ petition disposed of; petitioner directed to approach the Consumer Grievance Redressal Forum**

HEADNOTE

A grievance seeking issuance of a new electricity connection under s.43 of the Electricity Act, 2003 read with Clauses 4.4 and 7.7.2 of the U.P. Electricity Supply Code, 2005 (including a claim for penalty under s.43(3) for delay), and a demand for constitution of a Consumer Grievance Redressal Forum under the UPERC (Consumer Grievance Redressal Forum) Regulations, 2022, is to be routed through the existing/designated Consumer Grievance Redressal Forum by way of a representation, to be decided expeditiously after a hearing, rather than adjudicated directly by the writ court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

A new-connection grievance (including a s.43(3) penalty claim) is routed through the Consumer Grievance Redressal Forum rather than decided directly in writ jurisdiction

QUESTION

Should a writ court directly decide a new-connection/penalty grievance under s.43 EA2003 and Clauses 4.4/7.7.2 of the Supply Code, or should the consumer be relegated to the Consumer Grievance Redressal Forum?

HOLDING

The petitioner was directed to file a representation before the Consumer Grievance Redressal Forum (presided over by the Sub Divisional Officer, Electricity Urban Distribution, Sub Division-IX Raptinagar, Gorakhpur) within two weeks; the Forum was directed to decide the representation within four weeks of receipt, by a reasoned order after affording the petitioner a hearing. ¶ [unnumbered order](#)

LIMITING FACTS

The petitioner sought a mandamus directing issuance of a new electricity connection (application dated 15.4.2024 pending), payment of a s.43(3) delay penalty, and constitution of a district-level Consumer Grievance Redressal Forum under the 2022 CGRF Regulations.

PRINCIPLE TAGS

[clause-7.10-forum-ombudsman-route-for-billing-grievances](#) Companion application of the CGRF-routing principle already tracked in this corpus (SCJ-076, SCJ-096) — new-connection and delay-penalty grievances under s.43/Clause 4.4/7.7.2 are likewise routed through the Consumer Grievance Redressal Forum rather than decided directly by the writ court.

¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE NEW-CONNECTION APPLICATION AND S.43(3) PENALTY CLAIM

Not decided; left to the Consumer Grievance Redressal Forum. ¶ [unnumbered order](#)